

UPSC INDIAN POLITY

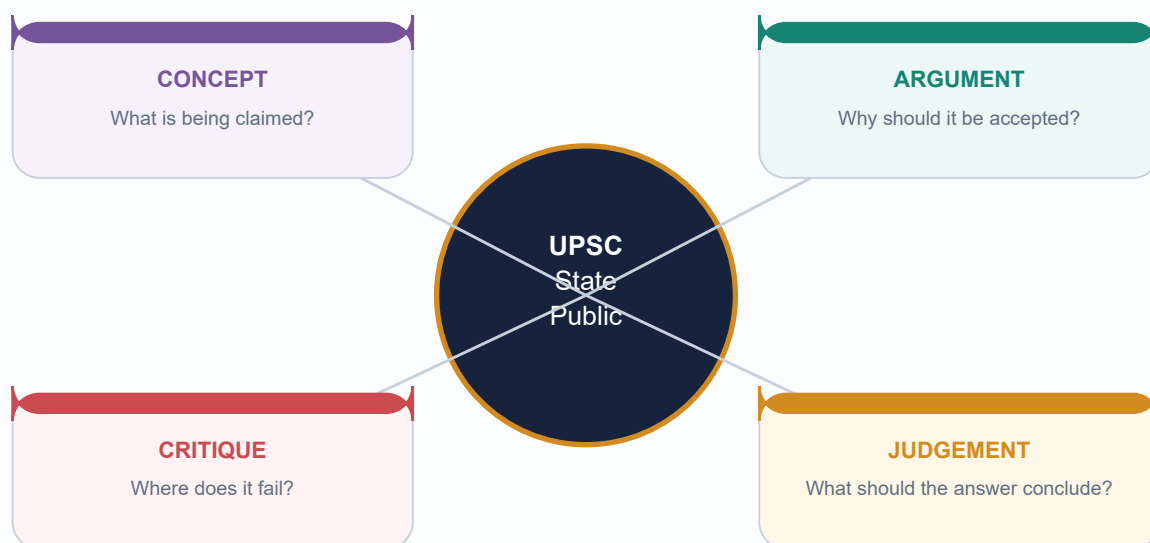
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: UPSC-and-SPSC.md + 28_UPSC-and-SPSC.md

Learning cards: 21



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/28_UPSC-and-SPSC.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/28_UPSC-and-SPSC.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/28_UPSC-and-SPSC.md.*

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Articles / Part	Art 315–323, Part XIV
Nature	Independent constitutional body
UPSC term	6 yr / 65 yr · SPSC term 6 yr / 62 yr
Removal	Both UPSC & SPSC members removed only by the President

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

The **UPSC** is India's central recruiting agency — the "**watch-dog of the merit system**" — recruiting for All-India & Central services. Its advice is **only advisory**, not binding. Each state has a **State PSC (SPSC)**; a **Joint SPSC (JSPSC)** can serve two+ states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1

The UPSC is India's central recruiting agency — the "watch-dog of the merit system" — recruiting for All-India & Central services. Its advice is only

Dimension 2

greater than □ Appointment vs removal: UPSC → President appoints & removes. SPSC → Governor appoints, President

Dimension 3

greater than removes. JSPSC → Act of Parliament, President appoints.

Dimension 4

greater than □ ½ members must have 10+ years of government service.

STATIC THEORY

- greater than □ **Appointment vs removal**: UPSC → President appoints & removes. **SPSC → Governor appoints, President
- greater than removes. **JSPSC** → Act of Parliament**, President appoints.
- greater than □ ½ **members** must have **10+ years** of government service.

MEMORY HOOK

greater than **Appointment vs removal**: UPSC → President appoints & removes. SPSC → Governor appoints, President | greater than ½ **members** must have **10+ years**** of government service.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation · Must-Know Facts · Part 1

GS-II Indian
Polity

INTRO & ORIGIN

- Strength is **not fixed by the Constitution**; avoid treating a past usual range as

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ Strength is not fixed by the Constitution; avoid treating a past usual range as	Dimension 2 a constitutional or permanent composition.
Dimension 3 ☐ Removal for misbehaviour needs a Supreme Court enquiry (advice binding).	Dimension 4 ☐ UPSC expenses are charged on the Consolidated Fund of India; SPSC expenses are

STATIC THEORY

- a constitutional or permanent composition.
- ☐ Removal for misbehaviour needs a **Supreme Court enquiry** (advice binding).
- ☐ UPSC expenses are charged on the **Consolidated Fund of India**; SPSC expenses are
- charged on the **Consolidated Fund of the State** (Art 322).
- ☐ **Chairman**: no further govt job; **Member**: only UPSC/SPSC chairmanship. **No second term**.
- ☐ Advice is **directory, not mandatory** (SC-held); confers **no right to the post**.

MUST-KNOW FACTS

1. Strength is **not fixed by the Constitution**; avoid treating a past usual range as
2. Removal for misbehaviour needs a **Supreme Court enquiry** (advice binding).
3. UPSC expenses are charged on the **Consolidated Fund of India**; SPSC expenses are
4. **Chairman**: no further govt job; **Member**: only UPSC/SPSC chairmanship. **No second term**.
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MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Must-Know Facts

HIGH

Foundation • Must-Know Facts • Part 2

GS-II Indian
Polity

INTRO & ORIGIN

- ☐ Cadre/pay/training → **DoPT**, not UPSC.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Cadre/pay/training → **DoPT**, not UPSC.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH**Foundation • ☐ Current link****GS-II** Indian
Polity**NEWS TRIGGER**

☐ **Puja Khedkar case (2024)** put UPSC candidate-verification & integrity in the spotlight; **lateral entry** into the bureaucracy remains a live debate on the merit system.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → ☐ Current link

HIGH**Advanced • Core Foundation****GS-II** Indian
Polity**INTRO & ORIGIN**

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP**Core Foundation****Dimension 1**

greater than Subject: Polity · Tier: Advanced (exam depth) ·
GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant, Ch.
43–44 (direct check of the local Sixth Revised Edition PDF).

Dimension 3

greater than ☐ = from source book · ☐☐ = inference / case
law · ☐ = current affairs.

Dimension 4

greater than Companion: basic/UPSC-and-SPSC.md.

STATIC THEORY

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MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Core Foundation

HIGH**Advanced · PART A — UPSC (Art 315–323, Part XIV)** □GS-II Indian
Polity**INTRO & ORIGIN**

□ The **central recruiting agency** — an **independent constitutional body** (directly created by the Constitution). Governs composition, appointment, removal, independence, powers & functions of the UPSC and SPSCs.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. The **central recruiting agency** — an **independent constitutional body** (directly created by the Constitution). Governs composition, appointment, removal, independence, powers & functions of the UPSC and SPSCs.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → PART A — UPSC (Art
315–323, Part XIV) □

HIGH**Advanced · Composition**GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Members	Chairman + members appointed by the President ; strength not fixed (usually 9–11)
□ Qualification	None specified — but ½ the members must have held office ≥ 10 years under the Centre/a state
□ Term	6 years or 65 years , whichever earlier
□ Acting chairman	President may appoint a member as acting chairman (15th Amdt 1963)

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Composition

HIGH

Advanced · Removal (Art 317) □

GS-II Indian
Polity

INTRO & ORIGIN

□ President removes the chairman/member if: **(a) adjudged insolvent, (b) engages in paid employment outside office, (c) unfit due to infirmity of mind/body**. For **misbehaviour**, the President **refers the matter to the Supreme Court** — the SC's advice (after enquiry) is **binding**. (President may **suspend** during the enquiry.)

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. President removes the chairman/member if: **(a) adjudged insolvent, (b) engages in paid employment outside office, (c) unfit due to infirmity of mind/body**. For **misbehaviour**, the President **refers the matter to the Supreme Court** — the SC's advice (after enquiry) is **binding**. (President may **suspend** during the enquiry.)

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → Removal (Art 317) □

HIGH

Advanced · Independence · Part 1

GS-II Indian
Polity

INTRO & ORIGIN

□ **Security of tenure** (removed only in the constitutional manner).

Advanced learning layer: concepts → constitutional detail → UPSC application.

INDEPENDENCE: RECALL MAP

Independence

Dimension 1

□ Security of tenure (removed only in the constitutional manner).

Dimension 2

□ Service conditions can't be varied to disadvantage after appointment.

Dimension 3

□ Expenses (salaries/pensions) charged on the Consolidated Fund of India (not voted).

Dimension 4

□ Chairman: NOT eligible for any further Central/state employment after office.

STATIC THEORY

- Service conditions **can't be varied to disadvantage** after appointment.
- Expenses (salaries/pensions) **charged on the Consolidated Fund of India** (not voted).
- **Chairman**: NOT eligible for any further Central/state employment after office.
- **Member**: eligible **ONLY** to become **UPSC chairman** or **an SPSC chairman** — nothing else.
- **No re-appointment** to the same office (no second term).
- □ *A.R. Kidwai case (1979)*: an ex-UPSC chairman appointed **Governor** was upheld — Governor is a

MUST-KNOW FACTS

1. **Security of tenure** (removed only in the constitutional manner).
2. Service conditions **can't be varied to disadvantage** after appointment.
3. Expenses (salaries/pensions) **charged on the Consolidated Fund of India** (not voted).
4. **Chairman**: NOT eligible for any further Central/state employment after office.
5. **Member**: eligible ONLY to become **UPSC chairman** or an **SPSC chairman** — nothing else.
6. **No re-appointment** to the same office (no second term).

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Independence

HIGH**Advanced · Independence · Part 2**GS-II Indian
Polity**INTRO & ORIGIN**

constitutional office, not "employment under government."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Independence

HIGH**Advanced · Functions**GS-II Indian
Polity**INTRO & ORIGIN**

□ Conducts exams for **All-India / Central services & UT services**; advises on **recruitment methods, appointments, promotions, transfers, disciplinary matters, legal-expense/pension claims**. Presents an **annual report** to the President → laid before Parliament with a memo explaining rejected advice.

Advanced learning layer: concepts → constitutional detail → UPSC application.

FUNCTIONS: RECALL MAP**Functions****Dimension 1**

□ Conducts exams for All-India / Central services & UT services; advises on recruitment methods, appointments, promotions, transfers, disciplinary mat

Dimension 2

□ □ Advisory & directory, NOT mandatory: the SC held that failure to consult the UPSC does not invalidate

Dimension 3

a government decision, and UPSC selection confers no right to the post.

STATIC THEORY

- ☐ ☐ **Advisory & directory, NOT mandatory:** the SC held that failure to consult the UPSC does **not invalidate**
- a government decision, and UPSC selection confers **no right to the post**.

MUST-KNOW FACTS

1. Conducts exams for **All-India / Central services & UT services**; advises on **recruitment methods, appointments, promotions, transfers, disciplinary matters, legal-expense/pension claims**. Presents an **annual report** to the President → laid before Parliament with a memo explaining rejected advice.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → Functions

HIGH**Advanced · Limitations (UPSC NOT consulted on) ☐**GS-II Indian
Polity**INTRO & ORIGIN**

Reservations for backward classes; SC/ST claims; selections for **tribunal/commission chairmanships, top diplomatic posts, bulk of Group C & D**; temporary appointments ≤ 1 year. The President may exclude posts by **regulations laid before Parliament for 14 days**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → Limitations (UPSC NOT consulted on) ☐

HIGH**Advanced · Role**GS-II Indian
Polity**INTRO & ORIGIN**

☐ **"Watch-dog of the merit system"** — but only a **recruiting agency**. Cadre management, pay, training → **Department of Personnel & Training (DoPT)**, the central *personnel* agency. ☐ ☐ On disciplinary matters it has an **edge over the CVC** (UPSC is constitutional; CVC statutory since 2003).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. "Watch-dog of the merit system" — but only a **recruiting agency**. Cadre management, pay, training → **Department of Personnel & Training (DoPT)**, the central *personnel* agency. ☐☐ On disciplinary matters it has an **edge over the CVC** (UPSC is constitutional; CVC statutory since 2003).

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → Role

HIGH**Advanced · PART B — STATE PSC (SPSC)** ☐**GS-II** Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Point	UPSC	SPSC
☐ Created by	Constitution	Constitution
☐ Appointed by	President	Governor
☐ Removed by	President	President (NOT the Governor!)
☐ Member's onward eligibility	UPSC chairman / SPSC chairman	UPSC member/chairman, or chairman of the same or another SPSC
☐ ½-members-10-yr rule	Yes	Yes
☐ Term	6 yr / 65 yr	6 yr / 62 yr

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → **PART B — STATE PSC (SPSC)** ☐

HIGH**Advanced · PART B — STATE PSC (SPSC)** ☐**GS-II** Indian
Polity**INTRO & ORIGIN**

☐ **Key trap:** An SPSC member/chairman is **appointed by the Governor but removed only by the President** — a state functionary removable only by the Union.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED / COMPLETE** → **PART B — STATE PSC (SPSC)** ☐

HIGH

Advanced • PART C — JOINT SPSC (JSPSC) □

GS-II Indian
Polity

INTRO & ORIGIN

□ For **two or more states**. Unlike UPSC/SPSC (constitutional), a **JSPSC is created by an Act of Parliament** (on the request of the state legislatures). Its **chairman & members are appointed by the President** and removed by the President. Term: 6 yr / 62 yr.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **UPSC can also serve a state's needs** — on the **Governor's request** with the **President's approval**.

MUST-KNOW FACTS

1. For **two or more states**. Unlike UPSC/SPSC (constitutional), a **JSPSC is created by an Act of Parliament** (on the request of the state legislatures). Its **chairman & members are appointed by the President** and removed by the President. Term: 6 yr / 62 yr.

2. **UPSC can also serve a state's needs** — on the **Governor's request** with the **President's approval**.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → PART C — JOINT SPSC
(JSPSC) □

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: SPSC members are removed by the Governor

CORRECT: removed **only by the President**.

WRONG: UPSC advice is binding on the government

CORRECT: **advisory/directory**, not binding.

WRONG: UPSC handles pay, cadre & training

CORRECT: that's the **DoPT**; UPSC only **recruits**.

WRONG: A UPSC member can take any government job after his term

CORRECT: only **UPSC/SPSC chairmanship**.

WRONG: JSPSC is a constitutional body

CORRECT: created by an **Act of Parliament** (statutory).

WRONG: UPSC is consulted on reservations/SC-ST claims

CORRECT: these are **outside** its purview.

WRONG: SPSC retirement age is 65

CORRECT: **62** for SPSC (65 for UPSC).

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED /**
COMPLETE → UPSC Traps

HIGH**Advanced • CA hooks**GS-II Indian
Polity**NEWS TRIGGER**

□ □ □ **UPSC/CSE reform debate** — attempts limit/age relaxation demands; the "**UDAAN**"/one-nation-one-exam and lateral-entry-into-bureaucracy controversy. □ □ □ **Puja Khedkar fake-disability/OBC-certificate case (2024)** → UPSC integrity, candidate verification, and

INTRO & ORIGIN

the "watch-dog of merit" role in focus.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ □ □ Vacancies & delays in several **State PSCs**; demand for greater autonomy and transparency.

MAINS ANGLE**STUDY LINK**

UPSC & State Public Service Commissions
(Articles 315–323) — **ADVANCED /**
COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The UPSC is only as strong as the merit system it guards." Examine its role and limitations. SPSC members appointed by the Governor but removable only by the President — assess this federal design. Lateral entry vs UPSC recruitment: does it dilute or strengthen the merit system?

STUDY LINK

UPSC & State Public Service Commissions
(Articles 315–323) — ADVANCED /
COMPLETE → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI